

		\$157,390; and, that Plaintiff reasonably incurred \$162,491.08 in attorneys' fees. The Court declines to award a multiplier. The party seeking a fee enhancement bears the burden of showing why an enhancement is appropriate. (<i>Ketchum v. Moses, supra</i>, 24 Cal.4th at 1138.) The Court is not persuaded that Plaintiff's requested enhancement is warranted. In sum, Court grants the motion and awards \$158,165, in reasonable attorneys' fees, and \$4,326.08, in costs and expenses, for a total award of \$162,491.08. Plaintiff shall give notice of the ruling.
6.	2025-1517503 Debdeb vs. Fair Trade Real Estate, Inc.	Defendants Fair Trade Real Estate, Inc.'s, Donald "Dek" Bake's, David Durant's, and Dennis Durant II's special motion to strike Plaintiffs' First Amended Complaint ("FAC") pursuant to Code Civ. Proc., § 425.16 is granted. Defendants' evidentiary objections to the declaration of Ehab Debdeb are sustained as to Nos. 1, 4, 8-29, 33-4, 37-39, 41-43, 46-41, 53, and 54, and overruled as to Nos. 2, 3, 5, 6, 7, 30, 31, 32, 35, 36, 40, 44, 45, and 52. Defendants' objections to the declaration of Nathan Hurd are sustained as to Nos. 2, 4, and 6-10 and overruled as to Nos. 1, 3, and 5. The Court additionally sustains Defendants' objection to the declaration of Bryan Lazarski filed on 6/9/26. This was due with Plaintiffs' opposition documents to be filed on 6/4/26. Counsel's only excuse for the late declaration is that he was in arbitration when it was due. Plaintiffs were aware of the motion since 2/24/26 when it was filed and served. The Court does not find counsel's conduct to be excusable, given the nature of litigation and likelihood that attorneys are often handling multiple different matters throughout the year at the same time. Anti-SLAPP motions are evaluated through a two-step process. Initially, the moving defendant bears the burden of establishing that the challenged allegations or claims "aris[e] from" protected activity in which the defendant has engaged. (Code Civ. Proc., § 426.15(e) [defining protected activity]; <i>Simpson Strong-Tie Co., Inc. v. Gore</i> (2010) 49 Cal.4th 12, 21; <i>Equilon Enterprises v. Consumer Cause, Inc.</i> (2002) 29 Cal.4th 53, 66–67.) If the defendant carries its burden, the plaintiff must then demonstrate its claims have at least

“minimal merit.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 384.)

In this case, Plaintiffs allege that Decedent Amir Debdeb (“Amir”) began working for Defendant Fair Trade Real Estate on 10/27/23.

He worked with Saad Kahn who in August of 2024 founded a separate company, Clean Slate CA, Inc. Kahn offered Amir a position at Clean Slate; Amir began his employment there on 8/6/24.

Plaintiffs’ relevant allegations include: On 8/6/24, Amir received a cease and desist letter from Fair Trade demanding he return all Fair Trade materials, client files, etc. (FAC, ¶ 14); Amir agreed to do this at Fair Trade’s Irvine office (FAC, ¶ 15); while there, Defendant David Durant told him “Dek and Matt are really pissed” and “Dek especially is out for blood...,” that Amir would be sued “for damages in the millions,” would be “personally liable for exorbitant legal fees,” and to “give Saad up,” in exchange for “legal immunity.” (FAC, ¶¶ 23-25, 27, 31.) In addition, Plaintiffs state that Defendants had already filed litigation on 8/20/24, but had not yet served Amir “to intimidate him into falsely implicating Saad.” (FAC, ¶ 28.) Tragically, two days after being served with the Complaint on 9/5/24, Amir committed suicide on 9/7/24. (FAC, ¶¶ 40-41.)

Plaintiffs state claims for (1) intentional infliction of emotional distress, (2) negligent misrepresentation and negligent infliction of emotional distress, (3) negligent hiring, retention and supervision, (4) intentional/negligent interference with prospective economic advantage, (5) wrongful use of civil proceedings/abuse of process/malicious prosecution, (6) wrongful death, and (7) survival.

Here, the conduct complained of falls under Code Civ. Proc. § 425.16(e)(2): “statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law.” The meeting was the result of the cease and desist letter from Fair Trade’s attorneys that noted the potential of litigation. (Blake Decl., Ex. A.) As summarized above, during the meeting, Amir was told he would be sued, and urged to bargain with Fair Trade’s lawyers and “implicate Saad Kahn in exchange for ‘legal immunity’.” (FAC, ¶¶ 14-16, 24-25.)

This conduct arises in furtherance of the right to petition. (See *Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1263 “communications in connection with anticipated litigation are considered to be under consideration or review by a ... judicial body.” [internal citations omitted].)

There is an exception to § 425.16(e), set forth in *Flatley v. Mauro* (2006) 39 Cal.4th 299. Here, the Court held “that where a defendant brings a motion to strike under section 425.16 based on a claim that the plaintiff’s action arises from activity by the defendant in furtherance of the defendant’s exercise of protected speech or petition rights, but either the defendant concedes, or the evidence conclusively establishes, that the assertedly protected speech or petition activity was illegal as a matter of law, the defendant is precluded from using the anti-SLAPP statute to strike the plaintiff’s action.” (*Id.* at 320.)

In *Flatley*, Plaintiff alleged that Defendant Mauro sent him a demand letter threatening to publicly accuse him of rape and other legal violations and publicly investigate his personal assets to determine punitive damages and other potential crimes unless he paid a settlement of seven figures. (*Id.* at 329.)

Citing to Pen. Code § 519, the Court defined extortion as “the obtaining of property from another, with his consent ... induced by a wrongful use of force or fear....” (*Id.* at 326.)

After carefully considering Plaintiffs’ claims, the Court does not find that Defendants’ conduct amounts to extortion. It is not clear from the allegations that Defendants were asking Amir to lie/testify falsely against Saad, even though this seems to have been Amir’s impression. (See gen. *Osborne v. Pleasanton Automotive Co., LP* (2024) 106 Cal.App.5th 361, 381 (court notes that the complainant’s “conclusory assertion that [cross-defendant’s] statements to him amounted to “blackmail” and “extortion” are nothing but characterizations unsupported by evidence or legal authority,” thus he fails to show said “statements amounted to extortion”); *Flickinger v. Finwall* (2022) 85 Cal.App.5th 822, 837 (“[a]lthough plaintiff says he understood it as a threat to go accuse him of a crime, his subjective and self-serving interpretation cannot establish extortion as a matter of law”).)

Accordingly, the Court finds that Defendants meet their burden with respect to step one, in showing protected speech.

Plaintiffs fail to meet their burden as to step two. This “probability of prevailing” is tested by the same standard governing a motion for summary judgment, nonsuit or directed verdict. I.e., in opposing an anti-SLAPP motion, it is plaintiff’s burden to make a prima facie showing of *facts* that would support a judgment in plaintiff’s favor. (See *Taus v. Loftus* (2007) 40 Cal.4th 683, 714 (a “summary-judgment-like procedure”).)

In determining whether the plaintiff has shown a reasonable probability he will prevail on the merits at trial, the court must consider both the legal sufficiency of and evidentiary support for the pleaded claims, as well as defenses to them. (*McGarry v. University of San Diego* (2007) 154 Cal. App. 4th 97, 108.) The court considers, but does not weigh, the evidence. (*Id.*) The test is the same as that governing a motion for summary judgment, nonsuit, or directed verdict – that is, whether the plaintiff’s evidence, if credited, would be sufficient to meet the burden of proof. (*Taus v. Loftus* (2007) 40 Cal. 4th 683, 714.)

Plaintiffs’ evidence to support their claims consists almost exclusively of Ehab Debdeb’s declaration and Amir’s email summarizing the meeting with Defendants. (See Opposition at pgs. 11-15.)

This evidence is largely inadmissible. Amir’s statements are hearsay and do not fall under any applicable hearsay exceptions.

In addition, Plaintiffs’ claims (except for the malicious prosecution claim) are precluded by the litigation privilege in Civil Code § 47(b).

Civ. Code, § 47(b) provides that “privileged publication or broadcast is one made...[i]n any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2 (commencing with Section 1084) of Title 1 of Part 3 of the Code of Civil Procedure...” (See also *Bonni v. St. Joseph Health System* (2022) 83 Cal.App.5th 288, 300–301 (“litigation privilege is not limited to statements made during the proceedings, but may extend to steps taken prior thereto, or afterwards....application of the privilege does not depend on the publisher’s motives, morals, ethics or intent.” [internal citations omitted].)

Here, the conduct complained of relates to Defendants’ anticipated/pending litigation, and thus the claims based thereon are barred by the litigation privilege.

While the Court recognizes that the litigation privilege does not extend to malicious prosecution claims, as previously noted, Plaintiffs fail to submit evidence to support the elements of malicious prosecution. (See *Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1242 (“[t]he policy of encouraging free access to the courts that underlies the absolute privilege applicable in defamation actions is outweighed by the policy of affording redress for individual wrongs when the requirements of favorable termination, lack of probable cause, and

		malice are satisfied.”.) Accordingly, Defendants’ anti-SLAPP motion is granted. Defendants shall give notice.
7.	2026-1540706 Inszone Insurance Services LLC vs. Torres	The motion by Plaintiff InsZone Insurance Services LLC (“Plaintiff”) for a preliminary injunction against Defendant Julio C. Torres (“Defendant”) and his agents, principals, partners, attorneys, servants, employees, representatives, and all those persons and/or entities acting under, in concert, with or for him is denied. As an initial matter, the Court notes Plaintiff electronically served the notice of motion, supporting papers, and reply on Defendant. Pursuant to CRC Rule 2.251(c)(3)(B), Defendant is self-represented and is “to be served by non-electronic methods unless [he] affirmatively consent[s] to electronic service.” There is no showing that Defendant affirmatively consented to electronic service. Defendant served and filed a timely opposition without objecting to service. The Court considers Plaintiff’s moving papers. However, the Court declines to consider Plaintiff’s improperly filed reply. Plaintiff may respond to Defendant’s opposition during oral argument. <u>General principles applicable to preliminary injunctions</u> Pursuant to Code of Civil Procedure section 526, subdivision (a), an injunction “may be granted in the following cases: (1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually. (2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. (3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual. (4) When pecuniary compensation would not afford adequate relief. (5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief. (6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings. (7) Where the obligation arises from a trust.”